

Oklahoma

GENERAL INFORMATION

1. Oklahoma **maintains** a list of eligible surplus lines insurers (see Other Comments section #1).
2. Oklahoma **does not** have a Surplus Lines Association.
3. Oklahoma **does not** have an Export List.
4. Oklahoma **does** have an industrial insured exemption applicable to life insurers only (see Appendix C).
Oklahoma has also adopted the NRRA exempt commercial purchaser exemption. Okla, Stat. tit. 36 § 1106.1(B).
5. **Surplus lines tax:** 6%, payable by broker, plus, 0.175% SLAS Clearinghouse transaction fee.
6. Oklahoma **does** allow domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING REQUIREMENTS (ALL INSURERS)

1. **Annual Statement/Report:** in U.S. dollars (by August 30 for alien insurers).
2. **Certificate of Approval Filing:** \$150 annually, due upon approval of application.
3. **Fraud Fee** of \$750 (due 7/31) and **Designation of Agent Fee** of \$10, due upon approval.
4. **Certificate of Approval** (Renewal fee): \$650 (\$500 review fee/\$150 certificate of approval fee) (Foreign – March 1; Alien – August 30).
5. **Application Fee:** \$1,000.
6. **Annual Premium Report:** by Oklahoma broker listing risk, premium amount and address of risk due April 1.

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY)

A surplus lines broker may place insurance with an alien insurer if that insurer is listed on the Quarterly List of Alien Insurers maintained by the NAIC. Okla, Stat. tit. 36 § 1106(1)(c).

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

A surplus lines broker may place insurance with a foreign insurer if:

- The insurer is licensed in its domiciliary jurisdiction; and
- The insurer has capital and surplus, or its equivalent under the laws of its domiciliary jurisdiction, that is the greater of the minimum capital and surplus requirements under the laws of this state or \$15 million.

The insurance commissioner may waive the minimum capital and surplus requirements for unauthorized foreign insurers if he makes an affirmative finding of acceptability after considering: quality of management, capital and surplus of a parent company, company underwriting profit and investment trends, market availability, and company record and reputation within the industry. Okla, Stat. tit. 36 § 1106(1)(b). The commissioner may not make a finding of acceptability if the insurer's capital and surplus is under \$4.5 million. Okla, Stat. tit. 36 §§ 1106(1)(a) and (b)

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

None.

OTHER COMMENTS OR REQUIREMENTS

1. Oklahoma's eligibility list is available at <https://www.oid.ok.gov/regulated-entities/surplus-lines/#1584971868535-95f6ab2f-f0ed>.
2. Insurance contracts procured as surplus lines coverage shall contain in bold-face type notification stamped on the declaration page of the policy that such contracts are not subject to the protection of any guaranty association in the event of liquidation or receivership of the insurer.
3. Insurance may not be procured from unauthorized insurers in Oklahoma unless the interest of the insured cannot be procured from authorized insurers after direct inquiry to such insurers by a licensed surplus lines broker.
4. Oklahoma does not have a bond requirement for non-resident surplus lines brokers.
5. Oklahoma exempts surplus lines brokers from applicable penalties associated with the writing of insurance business without a license if they submit an application within 30 days.
6. Oklahoma allows for compulsory auto liability insurance for commercial auto to be issued by surplus lines insurers.
7. Per a Special Notice issued in November 2024, the Oklahoma DOI is requesting certain premium and policy information from surplus lines insurers regarding surplus lines insurance that was written in Oklahoma for the year 2024 and going forward. This data is necessary to reconcile the premiums written by surplus lines insurers with the premiums reported by nonadmitted filers, such as surplus line brokers. Such information is reported online via the Surplus Lines Information Portal. The Special Notice, which includes data the Oklahoma DOI is requesting, is available at <https://www.oid.ok.gov/wp-content/uploads/2024/11/2024-11-7-24-0664-SPN-FINAL-Special-Notice.pdf>.

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